



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

November 20, 2020

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 201905096 regarding Police Officer Scott Hampton, Tax No. [REDACTED] (DADS No. 2020-22100) and Police Officer Arkim Jordan, Tax No. [REDACTED] (DADS No. 2020-22101).

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined the entry into the premises was conducted in good faith. Police Officer Jordan and Hampton entered the premise through a door previously forced open by FDNY a relatively short time earlier. The officers did so only after receiving an additional 911 call at the location. It should be noted that the entry was not performed to search for evidence, but rather to address the unreasonable noise condition. The Police Commissioner acknowledges that additional steps were required before the officers could make entry into the premise, but has determined that the officers would benefit from instructions as opposed to formal discipline.

The Police Commissioner also determined that Police Officer Hampton will receive no discipline for removing his O.C. spray in an effort to back up the crowd in the basement. The officers were in a situation where they were sufficiently outnumbered and in a confined space where retreat would have been futile. Police Officer Hampton in an effort to gain control of the situation displayed his O.C. spray, but did not use it. Once the hostile situation abated he put the spray away and smartly removed the individual to a safer location and issued the summons.

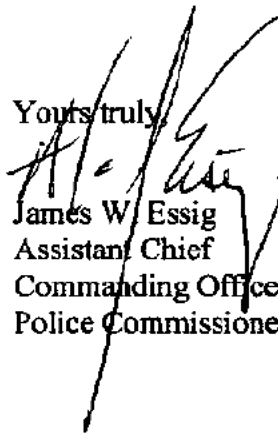
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Therefore, the Police Commissioner directs that Police Officer Hampton receive Instructions from his Commanding Officer in Patrol Guide Procedure 203-10 (5) (Public Contact – Prohibited Conduct/Improper Entry) and no disciplinary action for the alleged violation of Patrol Guide Procedure 203-10 (5) (Public Contact – Prohibited Conduct/Threat of Force). Additionally, Police Officer Jordan will receive Instructions from his Commanding Officer in Patrol Guide Procedure 203-10 (5) (Public Contact – Prohibited Conduct/Improper Entry).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,


James W. Essig
Assistant Chief
Commanding Officer
Police Commissioner's Office